COURSE OUTLINE



LEGL2104

Wills & Estates

Fall 2020 - Spring 2021

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LEGL2104 Wills & Estates

COURSE DESCRIPTION

This course examines estate planning and estate administration in Alberta. Learners prepare Wills, Personal Directives, Enduring Powers of Attorney, Applications for a Grant of Administration and Grant of Probate in accordance with Alberta legislation and common legal practice and procedure.

REQUISITES	Complete the following courses: • LEGL1501 - Litigation I (3)
EQUIVALENTS	Complete at least 1 of the following courses: • LEGL259 - Wills And Estates (3)
CREDITS	3
HOURS	45
ELIGIBLE FOR PLAR	Yes

COURSE LEARNING OUTCOMES

Bow Valley College is committed to ensuring our graduates can demonstrate their abilities in key areas that will make them effective citizens and encourage their development as lifelong learners. In addition to the discipline-specific skills that learners acquire in their programs, the College has identified ten learning outcomes.

College-Wide Outcomes:

1. Communication
2. Thinking Skills
3. Numeracy and Financial Literacy
4. Working with Others
5. Digital Literacy
6. Positive Attitudes and Behaviours
7. Continuous Learning
8. Health and Wellness Awareness
9. Citizenship and Intercultural Competence
10. Environmental Sustainability

#	COURSE LEARNING OUTCOME(S)	COLLEGE WIDE OUTCOMES SUPPORTED
1	Examine the role of a legal assistant in a wills and estates practice	Thinking Skills (2), Working with Others (4)
2	Prepare will and estate documentation in compliance with Alberta legislation	Communication (1), Thinking Skills (2), Digital Literacy (5)
3	Explain the procedures and documentation required for appointments under the Adult Guardianship and Trusteeship Act	Communication (1), Thinking Skills (2)
4	Prepare the documentation required for a Grant of Administration and Grant of Probate in compliance with Alberta's Surrogate Rules	Communication (1), Thinking Skills (2), Digital Literacy (5)

5	Outline the estate administration process from the time of death to final distribution of estate	Thinking Skills (2)

COURSE MODULES AND SCHEDULE

**Course schedule subject to change, depending on delivery mode and term of study. For exact dates, please consult the Course Offering Information in Brightspace.*

WEEK/HOURS	MODULES
Week 1	Module 1: What is Wills & Estates and the Role of the Legal Assistant
Week 2	Module 2: Dying Without a Will
Week 3	Module 3: Preparing a Will
Week 4	Module 4: Amending a Will and Law Firm Reporting
Week 5	Module 5: Personal Directive and Enduring Power of Attorney
Week 6	Module 6: Adult Guardianship and Trusteeship
Week 7	Module 7: Overview of Estate Administration
Week 8	Module 8: Grant of Administration
Week 9	Reading Week
Week 10	Module 8: Grant of Administration
Week 11	Module 9: Grant of Probate
Week 12	Module 9: Grant of Probate
Week 13	Module 10: Transmission and Transfer of Estate Assets
Week 14	Module 11: Law Firm Reporting, Module 12: Tax and Estate of the Deceased
Week 15	Final Exam

ASSESSMENT

COURSE LEARNING OUTCOME(S)	ASSESSMENT	WEIGHT
1,5	Class Activities	10%
2,4	Assignments	30%
1,2,3	Midterm Exam	25%
1,4,5	Final Exam	35%

Important: For details on each assignment and exam, please see the Course Offering Information.

PERFORMANCE STANDARDS

A minimum grade of D is required to pass this course. However, a program may require a higher grade in this course to progress in the program or to meet specific program completion requirements.

Please consult with the program area or contact the program chair for further details. A minimum Grade Point Average of 2.0 is required for graduation.

GRADING SCHEME

Grade	Percentage	Grade Point	Description
A+	95-100	4.0	Exceptional: superior knowledge of subject matter
A	90-94	4.0	Excellent: outstanding knowledge of subject matter
A-	85-89	3.67	
B+	80-84	3.33	
B	75-79	3.0	Very Good: knowledge of subject matter generally mastered
B-	70-74	2.67	
C+	67-69	2.33	
C	64-66	2.0	Satisfactory/Acceptable: knowledge of subject matter adequately mastered
C-	60-63	1.67	
D+	57-59	1.33	
D	50-56	1.0	Minimal Pass
F	Less than 50	0.0	Fail: an unsatisfactory performance

REQUIRED LEARNING RESOURCES

Gray, D., & Budd, J. *The Canadian Guide to Will and Estate Planning: Everything you Need to Know Today to Protect your Wealth and your Family Tomorrow*. 4th Edition. New York, NY: McGraw-Hill Education. **ISBN: 9781259863417**

Surrogate Rules and Forms Package: Alberta Queen's Printer

Learners to purchase hardcopy directly from http://www.qp.alberta.ca/

Additional learning resources may be found in the Course Offering Information or in Brightspace.

ADDITIONAL INFORMATION

Additional information may be found in the Course Offering Information or in Brightspace.

ACADEMIC ACCOMMODATIONS

Learners with a disability (learning, physical, and/or mental health) may qualify for academic and exam accommodations. For more information, or to apply for accommodations, learners should make an appointment with Accessibility Services in the Learner Success Services (LSS) Department. Accessibility Services can also assist learners who may be struggling with learning but do not have a formal diagnosis. To make an appointment visit LSS on the first floor of the south campus or call 403-410-1440. It is the learner's responsibility to contact Accessibility Services and request academic accommodations. For more information, please visit our website at http://www.bowvalleycollege.ca/accessibility.

INSTITUTIONAL POLICIES

Bow Valley College is committed to the highest standards of academic integrity and honesty. Learners are urged to become familiar with and uphold the following policies: Academic Honesty (500-1-7), Learner Code of Conduct, Procedures and Guidelines (500-1-1), Learner Appeals (500-1-12), Attendance (500-1-10), Grading (500-1-6), Academic Continuance and Graduation (500-1-5), and Electronic Communications (300-2-13). Audio or video recording of lectures, labs, seminars, or any other teaching and learning environment by learners is allowed only with consent of the instructor as part of an approved accommodation plan. Recorded material is to be used solely for personal study and is not being used or distributed without prior written consent from the instructor.

Turnitin:

Students may be required to submit their course work to Turnitin, a third-party service provider engaged by BVC. Turnitin identifies plagiarism by checking databases of electronic books and articles, archived webpages, and previously submitted student papers. Students acknowledge that any course work or essays submitted to Turnitin will be included as source documents in the Turnitin.com reference database, where it will be used solely to detect plagiarism. The terms that apply to a student's use of Turnitin are described on Turnitin.com.

Online Exam Proctoring:

Examinations for this course may require proctoring through an online proctoring service. Online proctoring enables online exam taking within a controlled and monitored environment, thereby enhancing academic integrity. Online proctoring may occur through a variety of methods, including but not limited to:

a. live online proctoring where a remote invigilator authenticates identity and observes completion of an exam using specialized software and recordings;
b. automated proctoring where the exam session is recorded and AI (artificial intelligence) analyzed;
c. browser lockdown that limits access to other applications, websites, copying, printing, screen capture and other functions; or
d. a combination of both live/automated proctoring and browser lockdown.

Course instructors will review recordings, analyses, and data obtained through online proctoring for academic integrity infractions. It is the student's responsibility to meet the technical, software, location, and identity verification requirements necessary to enable online proctoring.

Further details of these policies are available in the Academic Calendar and on the Bow Valley College website, bowvalleycollege.ca.

Learners are encouraged to keep a copy of this course outline for future reference.